Appx 'A'

SURETY BOND FOR PRIORITY-V STUDENT SEEKING ADMISSION TO POST GRADUATE (MD/MS/DNB) COURSE (2025 TO 2028 BATCH)

1. I, _____ (Name of Student) Son/ Daughter/ Ward of _____(Name of father) Resident of _____(full address) hereinafter called the '**Post-Graduate student'** (PG Student) (which expression shall include his/her heirs, executors, administrators and representatives) _____(Name of Surety) Son/Daughter/Ward of _____(Name of father) Resident of _____ (Full Address) at presently employed at _____(particulars of employment) in the_____ (address of the employer) herein after called the 'Surety' (Which expression shall include his heir, executors, administrators and representatives) are jointly held and firmly bound into the President of India (hereinafter called the 'Government' in the terms and conditions for admission to PG course at **AFMS Institutes** stated hereinafter and expenses that may have been incurred 'By occasioned to the Government be paid to the Government for which payment to be will and truly made we hereby bind ourselves, our heirs executors, administrators and representative few firmly by these presents as witness our hands this _____day of _____(Month & Year).

2. And whereas the PG Students has undertaken to join and continue PG studies in accordance with rules and regulations of the _____ (Institute Name & University Name) for obtaining MD/MS/DNB in _____(Subject) of the _____(Name of University) and join the Armed Forces Medical Services as a short service commissioned Officer on successful completion of the course if found medically fit for the same. And whereas in consideration of the government having agreed to sanction the admission to the said PG student, the candidate along with the surety has agreed to execute the above Bond with such conditions as hereunder written.

(a) That in consideration of the PG students being admitted by the Govt. to _____ (Institute Name) for the purpose of obtaining PG degree the PG student and surety covenant with the Government that the said PG student will attend the _____ (Institute Name) for obtaining PG degree and such other training as Government may determine from time-to-time for the prescribed period until he/she successfully completes his/her PG degree course and is declared fit (as to which the decision of Director General Armed Forces Medical Services shall be final) to be granted Short Services Commission and that the PG student will be commissioned as a Medical Officer in the regular Indian Army or the Indian Navy or Indian Air Force as SSC Officer to serve for 05 years unless he/she, the PG student is prevented from doing so on account of ill health or some other reason over which he/she, the PG student has no control as determined by a service medical board (as to which the Government shall be the sole judge) or by being removed on the ground that the student is considered by the appropriate authority to be unfit to continue as PG student, or on any other ground, to be granted a commission.

(b) That in the event the PG student either attains the age of 35 years as on 31 December of the year of successful completion of his/her PG course or refuses to accept commission in the Armed Forces Medical Services on successful completion of his/her PG course the PG student and the Surety shall jointly be liable to pay and refund forthwith to the Government of India on demand and without demur an amount of **Rs 59 Lakhs (Rupees Fifty Nine Lakhs)** as per Govt of India letter No 17436/DGAFMS/DG-1D dated 15 Mar 2021 and No. 3569/DGAFMS/DG-1B(i)/389/21/D (Med) dt 19 Apr 2021 together with interest on the said money, calculated at the rates in force then. The interest will be calculated after 30 days from date of successful completion of PG course or from the designated date of joining the Armed Forces unit as per the posting order issued whichever is later.

(c) That the PG student shall on successful completion of his/her PG degree course will report within such period, as may be allowed by the Director General Armed Forces Medical Services as joining time to the unit or station as specified in this behalf by the Director General Armed Forces Medical Services for grant of Short Service Commission on terms and conditions set out in Army Instruction 75/78 and as amended from time-to-time.

(d) That the PG student after grant of short service commission, if applies for release from service within **Five years** of grant said commission for any reason whatsoever and provided his/ her release is sanctioned by the Govt of India, as per rules in force, he/ she shall be relieved only after he/ she has refunded Bond money at the rate of Rs. **11.8 Lakhs** (**Rupees Eleven Lakhs and Eighty Thousand only)** per completed year or part thereof of unfulfilled liability limited to the Bond money as contained in the Bond agreement executed at the time of admission.

(e) That if the PG student leaves the institution without completing the course due to any reason after the last date of admission to the PG course as specified by NMC/affiliated University, he/ she will be required to pay a sum of **Rs. 19,66,667/-** (**Rupees Nineteen Lakhs Sixty-Six Thousand Six Hundred and Sixty Seven only)** per year or part thereof of the education at the institution based on extant rules subject to the conditions laid down in the subsequent paras.

(f) That the PG student made Non service Liability (NSL) on medical grounds will be required to pay Bond money at 50% of amount laid down, for further period of study from the date declared NSL, before he/ she is allowed to continue his/her studies. He/ She will be liable to pay the remaining 50% of the Bond money on completion of the course. However, in case of student becoming medically unfit for commission due to any disease or disability contracted in the circumstances over which he/ she has no control (on which the decision of the DGAFMS shall be final) and for which he/ she has not refused treatment, he/ she will not be required to pay any Bond money but will have to pay the cost of training as applicable for further period of study from the date declared NSL.

(g) That if the PG **(MD/MS/DNB)** student leaves the training institute voluntarily without completing the course due to any reason (other than medical grounds) after the permissible withdrawal period as governed by the prospectus, if any, will be liable to pay the amount of the Bond Money at a rate proportionate to the amount of time they have trained in the institute, limited to the total Bond money as contained in the Bond executed at the time of admission.

(h) That if the PG **(MD/MS/DNB)** student rendered as Non Service Liability (NSL) due to reasons other than medical grounds (viz. indiscipline, failure to adhere to the stipulated code of conduct, violation of medical ethics etc.) will be removed from the College Rolls and will be liable to pay the Bond Money as applicable to student and will not be allowed to continue further studies.

(i) That if the PG **(MD/MS/DNB)** student found to be medically unfit in the pre-commission medical exam due to pregnancy, will be reviewed by a medical board within six months of delivery and if found fit, will be offered SSC. The candidate will report to her parent teaching institution for such medical examination within six months of delivery. If the candidate fails to report to her parent teaching institution for the medical examination within the stipulated time or fails to join on being declared fit and offered SSC, she will be liable to pay the full Bond Money. If after review, she is found medically unfit for commission, she will be treated as NSL case and would be liable to pay Bond Money as contained in the Bond executed at the time of admission.

(j) That if the PG **(MD/MS/DNB)** Student who on completion of the course wants to be released from service liability before completion of the Liability period, provided the same is accepted by the Government, will be liable to pay the amount of the Bond Money at a rate proportionate to each complete year or part thereof of unfulfilled liability, limited to the total Bond Money as contained in the Bond or the total amount as contained in the undertaking executed at the time of admission.

(k) That if the PG **(MD/MS/DNB**) student leaves the institution and refuses to fulfill any of the Bond conditions, his/her original documents will not be handed over until he/she pays the surety Bond money as applicable and any other dues decided by the Commandant of the AFMS PG **(MD/MS/DNB)** institution.

3. The Terms and conditions mentioned in the agreement may get revised/amended as per the directions of Govt of India as far as related to payment of Bond money in default of honoring this agreement. The SURETY will be liable to agree to the same. In case of dispute, the decision of Govt of India will be final and binding on the Sureties or either.

4. In the event of non compliance of the aforesaid clauses or failure on the part of Sureties to comply with the Bond, the sum due hereunder will be liable to be recovered as an arrear of Land Revenue.

5. Under no circumstances does the clauses mentioned under section 133 & 135 of the Indian Contract Act, 1872 or any other rule of law or equity as applicable on that behalf, any indulgence of forbearances shown by the Govt of India to the candidates whether with or without consent of the sureties or either shall not operate as discharge of the sureties obligations under the said Bond.

6. NOW THE CONDITION OF THE OBLIGATION is such that the PG student after grant of **Short Service Commission** serves for a period of **five years** or cause to be paid to the Government the amount due to his/ her in contravention of the Bond agreement then this Bond shall be void, otherwise the same shall be and remain in full force.

Date ……

_____

Signed and delivered by the said student

_____

(Signature of Parent)

Name _____

(In capital letters)

_____

(Signature of Surety)

Name _____

(In capital letters)

Designation……

Office address……

In presence of:-

Witness 1

Signature_____

Name (in capital letters) _____

Designation _____

Office address_____

In presence of:-

Witness 2

Signature_____

Name (in capital letters) _____

Designation _____

Office address_____

Signed by

Director & Commandant/

Dean & Deputy Commandant of AFMS institution

For and on behalf of the

President of India Office Seal

In the presence of: -

1.

2.

Note: No cutting/ overwriting/ change in the text of Bond will be acceptable.